

that the plaintiff's remedy lay only in the state court under state law, with the Fourth Amendment operating merely to nullify a defense of federal authorization. We held that a violation of the Fourth Amendment by federal agents gives rise to a cause of action for damages consequent upon the unconstitutional conduct. *Ibid.*⁷

Bivens established that compensable injury to a constitutionally protected interest could be vindicated by a suit for damages invoking the general federal-question jurisdiction of the federal courts,⁸ but we reserved the question whether the agents involved were "immune from liability by virtue of their official position," and remanded the case for that determination. On remand, the Court of Appeals for the Second Circuit, as has every other Court of Appeals that has faced the question,⁹ held that the agents were not absolutely immune and that the public interest would be sufficiently protected by according the agents and their superiors a qualified immunity.

In our view, the Courts of Appeals have reached sound results. We cannot agree with the United States that our prior cases are to the contrary and support the rule it now urges us to embrace. Indeed, as we see it, the Government's

⁷ Although we had noted in *Bell v. Hood*, 327 U. S. 678 (1946), that "where federally protected rights have been invaded, it has been the rule from the beginning that courts will be alert to adjust their remedies so as to grant the necessary relief," *id.*, at 684, the specific question faced in *Bivens* had been reserved.

⁸ The Court's opinion in *Bivens* concerned only a Fourth Amendment claim and therefore did not discuss what other personal interests were similarly protected by provisions of the Constitution. We do not consider that issue here. Cf. *Doe v. McMillan*, 412 U. S. 306, 325 (1973).

⁹ *Black v. United States*, 534 F. 2d 524 (CA2 1976); *States Marine Lines v. Shultz*, 498 F. 2d 1146 (CA4 1974); *Mark v. Groff*, 521 F. 2d 1376 (CA9 1975); *G. M. Leasing Corp. v. United States*, 560 F. 2d 1011 (CA10 1977); *Apton v. Wilson*, 165 U. S. App. D. C. 22, 506 F. 2d 83 (1974); see *Paton v. La Prade*, 524 F. 2d 862 (CA3 1975); *Weir v. Muller*, 527 F. 2d 872 (CA5 1976); *Brubaker v. King*, 505 F. 2d 534 (CA7 1974); *Jones v. United States*, 536 F. 2d 269 (CA8 1976).